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Master EFA Agreement #ME02124006

First Citizens Bank.

155 Commerce Way, Portsmouth, NH 03801 | Ph: 800-999-9942 | F: 800-875-0312

CUSTOMER: Please verify this section and complete any missing information

Client: NORTHEAST FISH CO., LLC DBA Fjord Fish Market			
Address: 800 Food Center Dr			
City: Bronx	**State:** NY	**Zip:** 10474	**County:**
Federal Tax ID: [redacted]	**State of Incorporation:**		**Home Phone:**
Business Phone: 2036615006	**Fax:**	**Email:** jim@fjordfishmarket.com	

INSTRUCTIONS: The words "You", "Your" and "Customer" refer to the customer (the party who is borrowing funds against the Equipment or as a direct loan); "We", "Us", "Our" and "Secured Party" refer to First-Citizens Bank & Trust Company, and its successors and assigns, the secured party. Please complete and/or verify information and sign or authenticate where noted. Please call with any questions.

1. MASTER EFA & SCHEDULES: You agree to finance the Equipment or borrow funds as described in each Schedule ("Schedule") and, if applicable, finance the cost of any services and/or software related to the Equipment. Each Schedule shall constitute a separate agreement distinct from this Master EFA Agreement ("Master EFA") and is subject to all of the terms and conditions contained herein. This Master EFA shall constitute a separate agreement distinct from each Schedule and is subject to all of the terms and conditions of each Schedule. In the event of a conflict between this Master EFA and a Schedule, the provisions of the Schedule (and any Addendum thereto) shall prevail. The term "EFA" when used herein means collectively, each Schedule and this Master EFA. Capitalized terms used and not otherwise defined herein shall have the same meanings given in a Schedule. The term of this Master EFA begins on the first Schedule's "Commencement Date" (as provided in each Schedule) and continues as long as any Schedule remains unpaid. The Commencement Date with respect to each Schedule is the date on which such Schedule shall commence, which date is the date on which We in our sole discretion have provided Our acceptance of such Schedule. You authorize Us to insert or correct information on the EFA including Your proper legal name, address, dates and Equipment description. All notices shall be in writing addressed to You at Your address stated herein or to Us at 155 Commerce Way, Portsmouth, NH 03801.

2. EQUIPMENT: You have chosen the equipment as set forth on each Schedule as applicable ("Equipment"). You acknowledge that the Equipment, and, if applicable, the cost of any services and/or software related to the Equipment, are financed for You solely for commercial or business purposes and not for personal, family, agricultural or household purposes. If the Equipment is unsatisfactory, Your only remedy is against its supplier or manufacturer and You have no remedy for damages against Us. If the Delivery Guaranty Option (as provided in each Schedule) is not applicable, the occurrence of the earlier of: (i) Your confirmation to Us by phone, (ii) Your delivery to Us of an executed or authenticated Delivery & Acceptance Certificate (if requested by Us), (iii) the lapse of fifteen (15) days after delivery of the Equipment to You if You have not given written notice to Us of Your non-acceptance of the Equipment prior to the lapse of such fifteen-day period or (iv) the lapse of fifteen (15) days after delivery of the Equipment to You if You have given written notice to Us of Your non-acceptance of the Equipment and failed to return the Equipment to the supplier prior to the lapse of such fifteen-day period shall: (a) in each case constitute Your acknowledgement that You have inspected the Equipment, found it satisfactory in all respects and have irrevocably accepted it "as is", "where is" and without recourse, representation or warranty of any kind express or implied and (b) be a condition precedent for the occurrence of the Commencement Date. You will maintain Equipment location records and provide Equipment location to Us upon demand. You are responsible for keeping the Equipment in good repair, condition and working order, except for normal wear and tear. You are responsible for complying with all laws relating to the Equipment or its use and to protect the Equipment from damage, seizure or loss. You will continue to make payments if any damage, seizure or loss occurs to any part of the Equipment, provided that the Equipment is completely destroyed, seized or lost You shall pay Us the [illegible] Amount described in the Defaults and Remedies section of the EFA on the next payment date. We are not responsible for any losses, damages or injuries caused by the installation [illegible] use of the Equipment or from any other loss while You have the Equipment and You agree to h[illegible] Us harmless and defend and indemnify Us against any claim for loss, damages or injuries, in[illegible]ding attorneys' fee[illegible] and related costs.

3. NO W[illegible]R[illegible]ANTY: We are fi[illegible]ncing Equipment for You "AS IS" "WHERE IS" AND WITH ANY AND ALL FAULTS. As We [illegible] not select, manufacture, supply or inspect the Equipment, WE [illegible] WA[illegible]NTY OR REPRESENTATION, either express or implied as to the condition of the Equipment, its merchantability, its fitness or suitability for any particular purpose, its design, its capacity, its quality, or any other characteristics of the Equipment. We are not responsible for packaging, delivery, installation or testing of the Equipment. You agree that You have selected the supplier and each item of Equipment based on Your own judgment and disclaim any reliance upon any statements or representations made by Us. The supplier is not an agent of Ours and nothing the supplier states can affect Our obligation under this agreement. You will continue to make all payments under the EFA regardless of any claim or complaint against any supplier.

4. REPRESENTATIONS: You represent and warrant to Us that: You, and each of the individuals signing or authenticating the EFA, have the lawful power and authority to enter into the EFA; by entering into the EFA You will not violate any law or other agreement; and the location of Your chief executive office, state of incorporation or organization, exact legal name, place of residence and Federal Tax ID number are accurately listed in the EFA. The EFA will constitute Your legal, valid and binding obligation, enforceable against You in accordance with the terms hereof. If a registered organization, You represent and warrant to Us that You are duly organized, duly authorized, validly existing and in good standing. **THE EFA CANNOT BE TERMINATED OR CANCELED BY YOU FOR ANY REASON.** Your obligation to make payments under the EFA is absolute and unconditional.

5. ASSIGNMENT: YOU HAVE NO RIGHT TO SELL, TRANSFER, ASSIGN OR LEASE THE EQUIPMENT OR YOUR RIGHTS UNDER THE EFA, EXCEPT TO THE EXTENT WE PROVIDE OUR PRIOR WRITTEN CONSENT (NOT TO BE UNREASONABLY WITHHELD). You understand that We, without prior notice, have the right to assign, sell or otherwise transfer the EFA. You understand that Our assignee will have the same rights and benefits as Us. You agree that the rights of Our assignee will not be subject to any claims, defenses or setoff that You may have against Us.

6. SECURITY DEPOSIT: The security deposit, listed on a Schedule, is payable upon execution, is non-interest bearing, will be commingled with Our other funds and secures Your performance under the EFA. We may apply the security deposit to satisfy any amounts owed by You, in which event You will promptly restore the security deposit to its full amount. If all conditions are fully complied with and You have not ever been in default, the security deposit will be refunded to You after the end of the term of each Schedule.

7. INDEMNITY: You indemnify Us and Our affiliates and Our and Our affiliates' shareholders, directors, officers, employees, agents and assignees against any claims, actions, damages, fines, penalties, causes of action, suits or other legal proceedings or liabili[illegible]s includi[illegible]g all attorneys' fees, arising out of or connected with the EFA or any Equipment (collectively, "Claims"), except for Claims arising out of or related to Our gross negligence, willful misconduct or fraud. Such indemnification shall survive expiration, cancellation or termination of t[illegible]e EFA.

8. LAW: The EFA is governed by Federal law and the laws of New York. You agree and consent to the jurisdiction and venue of any State or Federal Court located in New York County, New York. You waive any right to challenge the jurisdiction or venue for any reason. You waive the defense of Forum Non Conveniens. The EFA is intended to constitute a valid and enforceable legal instrument and no provision of the EFA that may be deemed unenforceable shall in any way invalidate any other provision or provisions hereof, all of which shall remain in full force and effect. The EFA constitutes the entire agreement between the parties. **YOU AGREE TO WAIVE ALL RIGHTS TO A JURY TRIAL.** Each party prefers that any dispute between t[illegible]e resolved subject to the above jury trial waiver. Should the above jury trial waiver be fo[illegible]d unenforceable, then, upon the written request of any party, any dispute, including any [illegible]d all questions of law or fact relating thereto, shall be determined exclusively by a judicial re[illegible]rence proceeding in accordance with Cal. Civ. Proc. Code § 638 et seq. or the [illegible]pplicable stat[illegible] equivalent state law. The parties shall select a retired state or federal judge a[illegible]he referee. [illegible]he referee shall report a statement of decision to the Court. Notwithstanding the [illegible]going, n[illegible]hing in this paragraph shall limit any other right of the parties under the EFA.

9. COM[illegible]UTER [illegible]OFTWARE: Notwithstanding any other terms of the EFA, You agree that as to software only: We have not had, do not have, nor will have any title to such software; You have executed or will execute or otherwise authenticate a separate software license agreement; and We are not a party to and have no responsibilities whatsoever in regard to such license agreement; You have selected the software as per the Equipment paragraph of the EFA; and We make no warranties of merchantability, data accuracy, system integration or fitness for use and take absolutely no responsibility for the function or defective nature of such software.

PERSONAL GUARANTY: As consideration for Our entering into the EFA, the undersigned Guarantor ("You", "Your"), jointly and severally, unconditionally personally guarantees and agrees to be liable to Us, First-Citizens Bank & Trust Company, the Secured Party, for the full, prompt and indefeasible payment and performance of all now existing and future indebtedness, obligations or liabilities of the Customer arising under the EFA. You agree that We may make other arrangements including compromise or settlement with the Customer and You will waive all defenses and notice of those changes and will remain responsible for the payment and obligations of the EFA. We do not have to notify You if the Customer is in default. If the Customer defaults, You will immediately pay in accordance with the default provision of the EFA all sums due under the terms of the EFA and will perform all of the EFA obligations. If it is necessary for Us to proceed legally to enforce this guaranty, You expressly consent to the jurisdiction of the court set out in the 'Law' paragraph and agree to pay all costs, including attorneys' fees incurred in enforcement of this guaranty (including attorneys' fees incurred post-judgment). You also agree that the "Law" paragraph in its entirety applies to this guaranty. It is not necessary for Us to proceed first against the Customer or the Collateral before enforcing this guaranty. You grant Us continuing authority to access, review and update, from time to time, credit reference information, including credit bureau reports pertaining to You. All financial providers are hereby directed and authorized to release to Us any and all information pertaining to any of Your accounts.

Signature or authentication of the Guarantor (an Individual)

X NOT NEEDED

NO TITLE Date

Signature or authentication of the Guarantor (an Individual)

X NOT NEEDED

NO TITLE Date

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First Citizens Bank.

10. INSURANCE. During the term of each Schedule, You shall obtain and maintain, at Your own expense property damage insurance against all loss or damage to the Insured Equipment (as defined below), including, without limitation, loss by fire, theft and such other risks of loss as are customarily insured against on the Insured Equipment, in amounts acceptable to Us, naming Us as loss payee ("Physical Damage Insurance"). "Insured Equipment" means, collectively: (i) the Equipment, (ii) any services and/or software related to the Equipment, and (iii) if applicable, any remaining balance from previous leases or loans that is being refinanced under the EFA. If requested by Us, you shall also obtain and maintain, at Your own expense, liability and third party property damage insurance in amounts acceptable to Us, naming Us as an additional insured. In each case, such insurance shall be with such carriers and in such policy forms acceptable to Us. All policies must provide that We be given thirty (30) days' written notice of any material change or cancellation. You agree to provide Us with certificates or other evidence of insurance acceptable to Us If You do not provide Us with evidence of acceptable Physical Damage Insurance, We have the right, but not the obligation, to obtain Physical Damage Insurance covering Our interest in the Insured Equipment for the term of each Schedule, and renewals. You agree to cooperate with Us, Our insurer and Our agent in the placement of coverage and with claims. Any Physical Damage Insurance We obtain will not insure You against third party or liability claims and may be cancelled by Us at any time. In the event We obtain the above-described Physical Damage Insurance, You will be required to pay Us an additional amount each month for the insurance premium and an administrative fee. You agree that We, Our affiliates, and/or Our Agents may make a profit in connection with the Physical Damage Insurance We obtain. The cost may be more than the cost of obtaining Your own Physical Damage Insurance. If You later provide Us with evidence that You have obtained acceptable Physical Damage Insurance, We will cancel the Physical Damage Insurance We obtained. The Physical Damage Insurance We obtain (1) will not name You as an insured, additional insured, or loss payee; (2) will not provide You with liability and third party property damage insurance; (3) may not pay any claim that You make; (4) will not pay any claim made against You; and (5) may be cancelled by Us at any time. We may negotiate and settle for Our benefit all Physical Damage Insurance claims and all liability insurance claims involving Us or the Insured Equipment and may sign or endorse Your name on any draft, check or instrument representing insurance proceeds covering the Insured Equipment. We shall retain any Physical Damage Insurance proceeds up to the full amount owed under the EFA. You will remain responsible for any deficiency.

11. PAYMENTS, INTERIM PAYMENT, FEES & OTHER CHARGES, RATE FACTOR: You agree and promise to pay Us the periodic payments for the term (including any extensions) of the EFA in accordance with each Schedule plus any applicable sales tax, use tax or property tax and all other amounts described herein that are to be paid to Us under the EFA. You agree to reimburse Us for all fees, charges and penalties We may incur as the result of Your bank rejecting any automated clearing house (ACH) debits or credits due to insufficient funds or as the result of the bank account You provided to us in the Electronic Payment Authorization (or otherwise) (the "Authorized Account") not being properly configured for ACH transactions. We have the right to apply all sums received from You to any amounts due Us pursu to the EFA. You agree to pay Us a nonrefundable documentation fee plus all other reasonable fees associated with the EFA, including, but not limited to, credit inquiry, site inspection, appraisal, UCC search and filing, titling fees and costs, including a servicing fee of up to $379, unless otherwise noted, payable upon termination of each Schedule. Your signature or other authentication is an irrevocable offer to enter into the EFA. In the event that You sign or otherwise authenticate the EFA, but the EFA is not commenced, the advance payments, documentation fee and security deposit may be retained by Us to compensate for Our documentation, processing and other expenses. A late payment charge of the greater of $15 or 15% of the amount due will be assessed on any payment not paid within 3 days of the due date; interest on any delinquent amount due may be charged from the due date until paid at the highest legal rate. You also agree to pay Our standard NSF fee of $35 for each payment returned for insufficient funds. You agree to pay Us upon receipt of Your first invoice "Interim Payment" in an amount equal to 1/30th of the monthly payment, multiplied by the number of days from the Commencement Date to the first regular payment due date. Interim Payment is in addition to sum of the regul ly payments You are obligated to pay for the term of the EFA. Rate Factor: ac monthly payment includes, in addition to reimbursement of Equipment cost or loan amou a return on Our investment expressed as the rate factor which can be characteriz as a finance charge. Equipment cost or loan amount is the payment divided by the Rate F or. The total dollar mount of the finance charge is equal to the payment times the term plus th processing fees le Equipment cost or loan amount.

12. TAXES: u agree to pay en due or at a frequency set by Us all taxes (including sales, use, and per al property x, fines and penalties) and fees relating to the EFA or the Equipment. If W ke ment on any of the above, You agree to reimburse Us.

13. EQUIPMENT OWNERSHIP: You are the owner of the Equipment under each Schedule as applicable and have title to the Equipment subject to Our lien. You agree to keep the Equipment free and clear of all liens, claims and encumbrances. We have the right to inspect the Equipment at any time during Your regular business hours upon two (2) business days' prior written notice (provided that such notice period shall not apply upon the occurrence and continuance of a Default).

14. UCC FILINGS: To secure Your obligations under the EFA, You hereby grant Us a first priority security interest in the Equipment set forth in each Schedule and authorize Us to file UCC Financing Statements or similar instruments in Our Name or that of Our secured party representative to perfect such interest. "Equipment" includes all replacements, parts, repairs, additions, accessions and accessories incorporated in the Equipment or affixed to the Equipment and any and all proceeds of the foregoing, including, without limitation, insurance proceeds. To secure Your obligations under the EFA, You also hereby grant Us a security interest in all of your right, title and interest in and to all of your chattel paper, goods, inventory, equipment (other than the Equipment), accounts, accounts receivable, documents, instruments, general intangibles, payment intangibles, investment property, rents, income, securities, fixtures and other property, whether now existing or owned by You or hereafter arising or acquired by You, and in all proceeds, including insurance proceeds, thereof (collectively, "Collateral"), and authorize Us to file UCC Financing Statements or similar instruments in Our Name or that of Our secured party representative to perfect such interest.

15. DEFAULT & REMEDIES: You will be in default if: You fail to make any required payment under the EFA when due; You fail to perform any other obligation of the EFA or other agreement with Us or our affiliates; any representation or warranty made by You is false; a material adverse change (as determined by Us) occurs in Your financial condition or We believe the prospect of payment is impaired; You enter or have entered against You insolvency, bankruptcy or similar proceedings; the death of a personal guarantor occurs or You attempt to repudiate or revoke any agreement with Us ("Default"). If You are ever in Default, We, with or without notice to You, may initiate, and You hereby authorize Us to initiate, ACH debit entries at any time to the Authorized Account for all past due amounts (inclusive of any late payment charges, NSF fees and other amounts you are obligated to pay us under the EFA); may retain Your security deposit; terminate or cancel the EFA or any of Our obligations to You, require that You pay the unpaid remaining payments (discounted at 4%), the amount of any purchase option and late charges, taxes, fees and interest on the same; (all such foregoing amounts added together, the "Default Amount"); sue for and recover from You any and all amounts due Us; enter the Equipment and Collateral location and repossess and remove, or render unusable, the Equipment and Collateral; require You to make the Equipment and Collateral available to Us at a location determined by Us; sell or lease the Equipment and Collateral to any party without notice under such terms and conditions as We alone shall determine; refer the EFA to an attorney for collection and pursue all other remedies available to Us under the EFA, any agreement, any applicable law or the UCC. You agree to pay all costs and expenses related to collection or repossession, including attorneys' fees (including attorneys' fees incurred post-judgment). You agree that any delay or failure to enforce Our rights under the EFA does not prevent Us from enforcing any rights at a later time. **You agree that We will not be responsible to pay You any consequential or incidental damages you claim under the EFA.**

16. FAX & ELECTRONIC DOCUMENTS: No modification to the EFA as supplied by Us to You shall be effective unless agreed to in writing or other authentication by Us. A fax, copy or electronically affixed version of Your signature on the EFA when received by Us shall be binding on You for all purposes as if originally signed. The EFA shall only become binding against Us when actually signed or otherwise authenticated by Us. If a printed ver n of the EFA is used and maintained by Us in paper form, both You and We agree that the o y version of the EFA that shall constitute the sole authoritative version for all pur ses is the v sion containing Our original, copy or electronically affixed signature and Your ri al, fax, py or electronically affixed signature. Both You and We hereby agree that the FA y be a entic ted by each party by electronic means, and expressly cons to the use f an e tronic ersion of the EFA to embody the entire agreement and the nders ding bet een You nd s. Both You and We hereby agree that an EFA that i uthenticated You a d delivere to Us in scanned or other digital form (such as via DF file) and auth icate by Us shal considered an electronic version of the EFA An electronic version of the FA all be fully enforceable without the need to produce a print version; ed, howeve Y u shall provide Us with Your original scanned version upon request. If an electronic version of the EFA is used and maintained by Us in an electronic vault, both You and We agree that the only version of the EFA that shall constitute the sole authoritative version for all purposes is the version which has been authenticated by You and Us in accordance with applicable law and controlled by the "owner" (pursuant to the rules and regulations of DocuSign); provided that if the "Paper Out" process shall have occurred pursuant to the DocuSign product Reference Guide (or comparable rules of any successor electronic custodian), and there shall simultaneously exist both the "Paper Out" printed version and an electronic version of the EFA, then the "Paper Out" printed version of the EFA as identified in the DocuSign audit record and corresponding affidavit shall constitute the sole authoritative version for all purposes. You wish to continue to receive information at Your fax and/or email addresses. The EFA may be executed in any number of counterparts, a all such counterparts, taken together, shall constitute one and the same instrument. Reference herein to "DocuSign" shall mean DocuSign, Inc., San Francisco, CA, or any successor electronic custodian used by Us.

17. CELL PHONE CONSENT: You agree that by providing Us with a telephone number for a cellular phone or other wireless device, You are expressly consenting to receiving communications – including but not limited to prerecorded or artificial voice message calls, text messages, and calls made by an automatic telephone dialing system – from Us and Our assigns, affiliates and agents to You at that number. This express consent applies to each such telephone number that you provide to Us now or in the future and permits such calls regardless of their purpose. These calls and messages may incur access fees from your cellular provider.

ACCEPTED:

Customer: NORTHEAST FISH CO., LLC DBA Fjord Fish Market

X DocuSigned by: JAMES THISTLE 94C8B2D93BA7413... 5/30/2025
Date

Secured Party: First-Citizens Bank & Trust Company

X DocuSigned by: Benjamin Oppici on behalf of First-Citizens Bank & Trust Company [successor by merger to CIT Bank, N.A.] A80FCEB2324A47B... 5/30/2025
ed Representative Date

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First Citizens Bank.

Master EFA Agreement #ME02124006

CORPORATE GUARANTY

This CORPORATE GUARANTY applies to the above-referenced Master EFA and all schedules and addendums thereto. Each capitalized term has the same meaning given to it in the referenced Master EFA unless otherwise defined here. **Please sign or authenticate where noted. If you have any questions please call us at 800-999-9942.**

Customer:		
Name: NORTHEAST FISH CO., LLC DBA Fjord Fish Market	**Billing Address:** 800 Food Center Dr	
City: Bronx	**State:** NY	**Zip:** 10474

CORPORATE GUARANTOR:			
Name: FISH ISLAND, LLC		**Address:** 160 E Putnam Ave	
City: Cos Cob	**State:** CT	**Zip:** 06807	**Fed Tax ID:** 46-4215203
Phone: (203) 661-5006		**Email:**	

Corporate Guaranty: To Induce Us to finance equipment to the Customer pursuant to the Master EFA referenced above, You, the Guarantor, hereby, jointly and severally, unconditionally guaranty that the Customer will make all payments and meet all obligations required under the EFA fully and promptly. You agree that We may make other arrangements including compromise, settlement or foreclosure with the Customer and you will waive all defenses and notice of those changes and will remain responsible for the payment and obligations of this Customer. We do not have to notify you if the Customer is in default. If the Customer defaults, you will immediately pay in accordance with the default provision of the EFA all sums due under the terms of the EFA and will perform all the EFA obligations. You waive notice of the creation and existence of the EFA and any and all defenses otherwise available to a guarantor or accommodation party. You will remain liable for any deficiency following the initiation of bankruptcy or other insolvency actions affecting the Customer, whether or not the liability of the Customer is discharged in whole or in part by such action. If it is necessary for Us to proceed legally to enforce this guaranty, You expressly consent to the jurisdiction of the court set out in the 'Law' paragraph of the referenced Master EFA and agree to pay all costs, including attorney's fees incurred in enforcement of this guaranty. It is not necessary for Us to proceed first against the Customer or the Equipment before enforcing this guaranty. You grant Us continuing authority to access, review and update, from time to time, credit reference information, including credit bureau reports. All financial providers are hereby directed and authorized to release to us any and all information pertaining to any of Your accounts. This guaranty is binding upon Your estate, heirs and successors. You have no right to assign this guaranty. We may, without prior notice, assign, sell or otherwise transfer this Guaranty and EFA. You understand that our assignee will have the same rights and benefits but they do not have to perform any of Our obligations. You agree that the rights of Our assignee will not be subject to any claims, defenses or setoff that you may have against Us.

To secure Your obligations hereunder, You hereby grant to Us a continuing security interest in and to all Collateral now or hereafter existing. "Collateral" means: (i) that certain motor vehicle with VIN [_____] (the "Vehicle"), (ii) all parts, additions, attachments, replacements, substitutions, accessions and accessories related to, incorporated in, affixed to, or used in connection with the Vehicle; and (iii) all cash and non-cash proceeds and products related to any of the foregoing (including, without limitation, Your claims against third parties for loss or damage to, or destruction of, such Collateral).

Both You and We agree that the version of this agreement containing Our original signature and Your original, fax or copy signature, or authentication shall constitute the original authoritative version. You wish to continue to receive information at Your fax and/or email addresses.

Accepted:

Guarantor: FISH ISLAND, LLC

X DocuSigned by: JAMES THISTLE
94C8B2D93BA7413...
Jar r

Dated: 5/30/2025

Secured Party: First-Citizens Bank & Trust Company

X DocuSigned by: Benjamin Oppici
on behalf of First-Citizens Bank & Trust Company
(successor by merger to CIT Bank, N.A.)
A80FCEB2324A47B...
_____ Authorized Representative

Dated: 5/30/2025

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Prefunding Authorization (Delivery guaranty) is optional and means we will fund Your Supplier before some or all of the Equipment has been delivered to you. In such case, You understand that despite the fact some or all of the Equipment has not been delivered or installed, Your obligations under this Contract will commence immediately and payments will be due prior to Equipment delivery.

If you wish to elect prefunding authorization (delivery guaranty), please select 'Yes'. If you do not wish to elect prefunding authorization (delivery guaranty), please select 'No' and then you may proceed past the signing portion of the Prefunding Authorization (Delivery Guaranty) Election Addendum, by clicking 'Next' or 'Finish.'

Yes

PREFUNDING AUTHORIZATION (DELIVERY GUARANTY) ELECTION ADDE .UM TO AGREEMENT #ME02124006 Schedule # DCC-1928294

This Addendum forms and is made a part of that Agreement #ME02124006 and Schedule# DCC-1928294 (the "Agreement") between First-Citizens Bank & Trust Company ("Bank") and NORTHEAST FISH CO., LLC DBA Fjord Fish Market ("Customer"). Capitalized terms used herein but not defined herein will have the same meaning given to them in the Agreement. Pursuant to the terms of Your Schedule you have the option to elect Prefunding Authorization (Delivery Guaranty) .nich means we will fund Your Supplie before some or all of the Equipment has been delivered to you if We agree to advance .ie funding to Your Supplier.

Election of the Prefunding Authorization (Delivery Guaranty).

1. You have requested that We advance the amount invoiced by your Supplier to the Supplier notwithstanding the fact that some or all of the Equipment has not been delivered or installed and commence the Agreement which bligates you to start making payments to Us. **By Your signature below You are electing the Prefunding Authorization (Delivery Guaranty) Option in the Schedule, and You are affirmatively making this election based on Your judgment and understanding of the agreements You have made set forth herein. In connection with Your election of the Prefunding Authorization (Delivery Guaranty), You acknowledge, understand and agree that: ( ) We are paying the Supplier as directed by You, (ii) Your obligations under the Agreement to repay the amounts advanced hereunder are absolute and unconditional, (iii) You cannot withhold, set off, or reduce such payments for any reason, including non-performance of services or lack of delivery or acceptance of the Equipment and (iv) notwithstanding any term to the contrary in the Agreement, You agree that the Agreement commences upon Your execution of this Prefunding Authorization (Delivery Guaranty) Addendum.**

2. If the Equipment is not manufactured and delivered as required by the purchase documents or is not properly installed, does not operate as represented or warranted by Supplier, r is unsatisfactory for any reason, Customer shall make all claims pertaining thereto solely against Supplier and shall, nevertheless, pay Bank all amounts due under this Agreement. Bank shall have no liability to Customer or any third party for any direct, indirect, special or consequential damages arising out of this Agreement or concerning the Equipment. Neither Supplier, nor any salesperson, agent or representative of Supplier is authorized to waive or alter any term or condition of this Agreement, and no representation given by Supplier as to the Equipment or any other matter shall in any way affect Customer's duty to pay all amounts and satisfy all obligations under the Agreement.

3. Customer acknowledges and agrees that Bank does not represent the Supplier, or the manufacturer of the Equipment and Customer has selected the Equipment and Supplier based upon Customer's own sole judgment.

All other terms and conditions of the Agreement shall remain unchanged and in full force and effect. The changes contained in this Addendum shall apply to only the Agreement to which it is incorporated and is not a precedent for future transactions.

IN WITNESS WHEREOF, the parties hereto have executed this Addendum on the dates set forth below.

First-Citizens Bank & Trust Company	NORTHEAST FISH CO., LLC DBA Fjord Fish Market
DocuSigned by: Benjamin Oppici on behalf of First-Citizens Bank & Trust Company (successor by merger to CIT Bank, N.A.) A80FCEB2324A47B...	X DocuSigned by: JAMES THISTLE 94C8B2D93BA7413... 5/30/2025 Date
Title:	
Date: 5/30/2025	

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EQUIPMENT SCHEDULE #DCC-1928294

Master EFA Agreement #ME02124006

This Equipment Schedule is subject to all of the terms and conditions of the referenced Master EFA Agreement ("Master EFA"), including, without limitation, Section 14 (UCC Filings). Each capitalized term used herein has the same meaning given to it in the referenced Master EFA unless otherwise defined herein. You have reviewed and acknowledge all terms of this EFA. **Please sign or authenticate where noted.**

CUSTOMER INFORMATION: Please verify this section and complete any missing information

Customer: NORTHEAST FISH CO., LLC DBA Fjord Fish Market			
Billing Address: 800 Food Center Dr			
City: Bronx	**State**: NY	**Zip**: 10474	**County**:
Federal Tax ID: [redacted]		**State of Incorporation**:	
Business Phone: 2036615006	**Fax**:	**Email**: jim@fjordfishmarket.com	

EQUIPMENT DESCRIPTION:

All personal property described below, including all replacements, parts, repairs, additions, accessions and accessories incorporated in such personal property or affixed to such personal property and any and all proceeds of the foregoing, including, without limitation, insurance proceeds, the "Equipment".

Supplier(s):

Titled Vehicles; NEw 23 RAM Proamaster 2500

You understand and agree that the collateral description comprising the "Equipment": (i) shall be the collateral description comprising the "Equipment" that is provided in the Schedule that has been executed by both You and Us, and (ii) may be amended or supplemented by Us upon Our receipt of the invoice(s) or comparable documentation issued by the Supplier. Any such supplemented and/or amended collateral description shall supersede in its entirety the collateral description provided in this Schedule and shall comprise the "Equipment". You acknowledge that You are choosing to finance the purchase of this Equipment over time per the terms and conditions of this EFA rather than the cash price listed on the invoice(s).

Equipment Location (if different from billing): 800 Food Center Dr Bronx NY 10474

EFA TERMS and CONDITIONS:

Your Monthly Payment is set forth below in the box entitled "**Monthly Payment**", **which is due in advance** on the due date to be established by Us on our acceptance of this Schedule. This Schedule shall commence upon Our written acceptance or other authentication on the "Commencement Date" (provided below), the occurrence of which is described in the Master EFA. **Upon the occurrence of the Commencement Date, this shall become a noncancelable, irrevocable agreement; it cannot be cancelled or terminated.**

EFA TERM:	MONTHLY PAYMENT:*	UPFRONT PAYMENT AMOUNTS:*
60 Months (term is monthly unless otherwise indicated) **Rate Factor:** 0.03383	$3,144.03 *Inclusive of estimated sales tax (where applicable) that is included in loan amount	Security Deposit $0.00 Advance Payment w/ Estm. Tax $0.00 Processing Fees $699.00 ** **(Processing fees are included in the first invoice) *Inclusive of estimated sales tax (where applicable) that is included in loan amount

Delivery Guaranty Option: If this option is elected, in reliance on Your promise to pay Us and subject to EFA terms, We may, subject to credit approval, pay Supplier(s) prior to Equipment delivery. In such case, You understand that despite the fact that some or all of the Equipment has not been delivered or installed, You authorize Us to pay Supplier(s) and Your obligations under this EFA will commence immediately and are absolute and unconditional. You understand and agree that if You are not satisfied with any part of the Equipment, You will only look to persons other than Us, such as Supplier(s), manufacturer, vendor, installer or carrier, and shall not: (i) assert against Us any claim or defense that You may have with the Equipment, installation or delivery and (ii) withhold, set off or reduce any payment due under this EFA by reason thereof. Election of the Delivery Guaranty Option is made separately.

Pay Proceeds Direction: You hereby irrevocably instruct Us to disburse proceeds of this EFA to the Supplier(s) listed above in the amounts listed on the attached Invoice(s). Disbursement by Us in accordance with these instructions shall be and constitute payment and delivery to and receipt by You of any and all such proceeds.

Payment Adjustment: You agree that We may adjust the Monthly Payment (as set forth above in the box entitled "Monthly Payment") upward or downward, as the case may be, in proportion to any variation between the final Equipment cost and the estimated Equipment cost and/or any variation between the final sales tax amount (where applicable) that is included in the loan amount and the estimated sales tax amount (where applicable) that is included in the loan amount, in each case upon which the original Monthly Payment set forth above was based. You so authorize Us to make any such adjustment.

Equipment Purchase: If the Delivery Guaranty Option is not applicable, You authorize Us to pay Supplier(s) pursuant to the attached Invoice(s) and Your Pay Proceeds Direction. Upon signing or authenticating below, Your promises herein will be irrevocable and unconditional in all respects.

EFA ACCEPTANCE:

Customer: NORTHEAST FISH CO., LLC DBA Fjord Fish Market DocuSigned by: X JAMES THISTLE 5/30/2025 Date 94C8B2D93BA7413...	First Citizens Bank & Trust Company DocuSigned by: Benjamin Oppici on behalf of First-Citizens Bank & Trust Company (successor by merger to CIT Bank, N.A.) A80FCEB2324A47B... Commencement Date: 5/30/2025

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IMPORTANT INFORMATION ABOUT PROCEDURES FOR OPENING A NEW ACCOUNT

To help the government fight the funding of terrorism and money laundering activities, Federal law requires all financial institutions to obtain, verify, and record information that identifies each person who opens an account. What this means for You: When You open an account, We will ask for Your name, address, date of birth, and other information that will allow Us to identify You. We may also ask to see Your driver's license or other identifying documents.

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First Citizens Bank.

TITLE VEHICLE ADDENDUM TO EQUIPMENT FINANCE AGREEMENT # DCC-1928294

Master EFA Agreement ME02124006

This Titled Vehicle Addendum amends the referenced Equipment Finance Agreement to add the terms and conditions outlined below. Each capitalized term has the same meaning given to it in the referenced Equipment Finance Agreement unless otherwise defined here. **Please complete & sign where noted. If you have any questions, please call us at 1-800-253-0157.**

CUSTOMER/OWNER:		
Name: NORTHEAST FISH CO., LLC DBA Fjord Fish Market	Billing Address: 800 Food Center Dr	
City: Bronx	State: NY	Zip: 10474

TITLED VEHICLE DETAILED EQUIPMENT INFORMATION: Year, Make, Model, VIN

2023 RAM Promaster 2500 3C6LRVVG5PE542063
2023 Ram Promaster 2500 3C6LRVVG4PE542474

Vehicle Titling Direction: The vehicle(s) must be titled with the following owner:

Owner:
NORTHEAST FISH CO., LLC DBA Fjord Fish Market
800 Food Center Dr
Bronx, NY 10474

Lienholder:
First-Citizens Bank & Trust Company
PO Box 26592 DAC 20
Raleigh, NC 27611-6592
ELT Code: 81948

Titled Vehicle Terms: As the Equipment financed includes one or more items which are titled vehicles, you agree to provide to us the supplier's original title docu entation within one business day of our payment to such supplier, to execute all required title application and transfer documents as required by us and to cooperate fully and in a timely manner with us in the titling process, to title the vehicle in accordance with the titling instruction above and in the Equipment Finance Agreement, to deliver the original title issued in your name with us noted as the Lienholder to us within one business day of receipt. **You agree to pay a fee of $99 per month** per vehicle for each month we have not received the properly issued title, **beginning 90 days after your receipt of the vehicle.**

Location: You agree that you are responsible for maintaining records showing the location of each item of Equipment. You will provide such records and location to us upon our request.

Additional Warranty Disclaimer: In addition to the warranty disclaimers included in the Equipment Finance Agreement, CUSTOMER REPRESENTS AND WARRANTS THAT THE EQUIPMENT IS NOW AND AT ALL TIMES HEREAFTER WILL CONTINUE TO BE IN FULL COMPLIANCE WITH ALL FEDERAL, STATE AND LOCAL LAWS. WE SPECIFICALLY MAKE NO WARRANTIES OR REPRESENTATIONS AS TO THE SAFETY OF SUCH EQUIPMENT AND YOU ACKNOWLEDGE THAT SUCH EQUIPMENT IS EXTREMELY HAZARDOUS WHEN NOT ASSEMBLED, USED OR DISMANTLED PROPERLY. YOU ASSUME ALL RISKS AND RESPONSIBILITIES ASSOCIATED WITH THE USE OF THIS EQUIPMENT. YOU SPECIFICALLY ACKNOWLEDGE YOUR DUTY TO USE THE EQUIPMENT WITH DUE CARE AND FOR THE PURPOSE FOR WHICH IT WAS INTENDED. YOU FURTHER ACKNOWLEDGE THAT YOU HAVE RECEIVED AND REVIEWED ALL SAFETY GUIDELINES AND OTHER SAFETY INFORMATION PROVIDED BY THE MANUFACTURER AND/OR SUPPLIER AND YOU AGREE TO ABIDE BY AND COMPLY WITH ALL SAFETY REQUIREMENTS OF THE MANUFACTURER AND/OR SUPPLIER AS WELL AS ALL FEDERAL, STATE AND LOCAL REGULATIONS RELATED TO THE USE OF THE EQUIPMENT.

Failure to comply with any of the terms and conditions outlined in this Addendum shall be deemed a condition of default as defined in the Equipment Finance Agreement.

Agreed:
Customer/Obligor: NORTHEAST FISH CO., LLC DBA Fjord Fish Market

DocuSigned by:
X JAMES THISTLE 5/30/2025
Ja 94C8B2D93BA7413... (Date)

Secured Party: **First Citizens Bank & Trust Company**

DocuSigned by:
X Benjamin Oppici 5/30/2025
Au on behalf of First-Citizens Bank & Trust Company (successor by merger to CIT Bank, N.A.) (Date)
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PREPAYMENT ADDENDUM

Eq. Schedule No. DCC-1928294

This Prepayment Addendum ("Addendum") supplements and amends that certain equipment finance agreement identified by the schedule number set forth above ("Schedule") between First-Citizens Bank & Trust Company, as secured party ("First-Citizens Bank & Trust Company"), and NORTHEAST FISH CO., LLC DBA Fjord Fish Market, as customer ("Customer"), and pertaining to the property being financed by and described in the Schedule. The following is hereby added as a new section to the Schedule:

"**Prepayment**: Notwithstanding any other provision of this Schedule to the contrary, and provided no Default has occurred under this Schedule or any other agreement with First-Citizens Bank & Trust Company, Customer may prepay this Schedule at any time, in whole but not in part, by paying First-Citizens Bank & Trust Company an amount equal to the Unpaid Balance. "Unpaid Balance" shall mean, with respect to this Schedule, as of the date of any such permitted prepayment thereunder, the sum of; (i) all amounts then due and owing by you under this Schedule, plus (ii) the discounted present value of all future monthly scheduled payments to be owed by you during the balance of the term of this Schedule, calculated using a discount rate equal to (A) 4% if the prepayment is made during the first half of the contract term of this Schedule, or (B) the rate that was used by First-Citizens Bank & Trust Company to calculate the monthly payment amount payable under this Schedule if the prepayment is made during the second half of the contract term of this Schedule, plus (iii) plus all applicable taxes, if any, arising out of such prepayment. First-Citizens Bank & Trust Company shall specify the Unpaid Balance which, absent manifest error, shall be binding and conclusive. No prepayment penalty shall be added to the Unpaid Balance."

You agree that a facsimile or other copy of this Addendum, as executed, shall be deemed the equivalent of an originally executed copy for all purposes, and except as amended by this Addendum, the Schedule remains in full force and effect.

COPY VIEW

Customer: NORTHEAST FISH CO., LLC DBA Fjord Fish Market

X DocuSigned by: JAMES THISTLE 5/30/2025
Jan 94C8B2D93BA7413... (Date)

ACCEPTED BY First-Citizens Bank & Trust Company

X DocuSigned by: Benjamin Oppici on behalf of First-Citizens Bank & Trust Company Ben Oppici A80FCEB2324A47B... 5/30/2025
(Date)

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